

POLITICS

The Story Behind Phillip Halpern's Viral U-T Piece Bashing AG William Barr



by Ken Stone • Times of San Diego

Oct. 16, 2020, 11:45 p.m.



Retired federal prosecutor Phillip Halpern, shown on MSNBC, said: “My friend, we live in perilous times. This is not good for this country. I don’t care if you’re right, left, middle, Republican, Democrat, black, yellow, brown, purple. This is not the way a democracy should function.”

For a “whirlwind” last few days, Phillip “Phil” Halpern can thank Roger Stone, Paul Manafort, Michael Flynn — and his recently retired schoolteacher wife.

It was Marcia Halpern, a San Diego Unified schools veteran, who pressed her newly retired assistant U.S. attorney husband to write **an opinion piece** for The San Diego Union-Tribune blistering Attorney General William Barr.

“I discussed it with her, and I said: ‘Look, you know, I might take some grief for this. I don’t know if it’s the right thing to do,’” Halpern said Friday. “And she encouraged me to write it.”

But it was Barr’s efforts to shield Donald Trump cronies Stone, Manafort and Flynn from prison that led Halpern to delay his retirement from the **San Diego U.S. Attorney’s Office**. He feared Barr, taking cues from Trump tweets, would hobble his campaign misspending case against GOP Rep. Duncan D. Hunter.

“I originally planned to retire in April, but I stayed on because of my fears of meddling in the Hunter case,” he said in a phone interview.

So Halpern, 67, is a little annoyed that some accounts suggest he abruptly quit in protest. (**Sample headline:** “Career Prosecutor Torches Bill Barr In Epic Resignation Editorial”)

“It just makes me laugh — the news media,” he said. “That’s up to them to characterize how they see it.”

He acknowledges, however, that his departure was “clearly connected” to Barr’s behavior and “my distaste and mistrust for the leadership of this Department of Justice.”

The U-T essay went viral and led to national TV appearances, including a 4 1/2-minute stint Thursday on MSNBC’s “The Last Word with Lawrence O’Donnell” and **3 minutes with CNN’s** Brianna Keilar. He says his unlisted phone “rang off the hook” starting Wednesday afternoon.

Halpern could have called it quits on a 36-year DOJ career in August, though. That’s when Margaret Hunter, wife of the resigned Alpine congressman, was sentenced for her conspiracy plea.

But he says he was asked to stay after the Hunter prosecutions — to help wrap up work on two major investigations, including one “incredibly complex” international fraud case with over \$100 million in losses.

The Mission Hills resident finished that work last month, and his last official day was Sept. 30.

Halpern sent a farewell letter to his San Diego colleagues, taking great heart in “their honest, loyal service” but also expressing dismay about “what’s happening in the department.”

Although “many people” showed support for his critique, he encountered some pushback on his “sense of attacking the Department of Justice.”

A couple weeks ago, he debated: “Jesus, should I do something? Should I say something? And I kicked the idea around, and it was very unclear to me that I was going to do it. ... I would have said no, and then at the last minute it was clear to me that people wouldn’t listen (internally).”

✕

?

Privacy Badger has replaced [this X \(Twitter\) widget](#)

Allow once

Always allow on this site

At that point, he thought: “If nobody else is going to say anything, OK, I’ll write it. And that as much as anything pushed me over to actually write the editorial, which I wrote fairly quickly.”

The result was an essay over 2,000 words, which included a historical component. He considered sending it to The New York Times or Washington Post. He shared it with a couple close lawyer friends, asking: “Look, am I making a big mistake?”

The U-T version — his first ever opinion piece — clocked in much shorter.

“I got the word that it’s not going to be more than 750 words,” he said.

On Friday, Halpern said he could have bolstered it.

“If I had written the op-ed a couple days later, I might have thrown in stuff about the latest incidents where the DOJ is **suing Melania Trump’s best friend**,” he said. “The way we’re looking at election fraud cases. Every day there’s something. I definitely would have put in the fact that Trump’s now **mad at Barr and [Secretary of State Mike] Pompeo**.”

But in fact, Halpern has kind things to say about Barr.

“He was an honorable attorney general” for President George H.W. Bush in the early 1990s, said Halpern, appointed in the Reagan administration. “And I’m just so thankful that it appears Barr is drawing the line when it comes to these ridiculous allegations against Clinton and Biden and Obama.”

And the feared bulldozing by Barr?

It never happened.

“Nobody in the Department of Justice pressured us about the Hunter prosecution,” Halpern said. “I spoke to career people in the department — senior people... I received support for what we were doing.”



Looming over the Hunter case, begun under President Obama, was a Trump tweet Sept. 3, 2018, critical of Attorney General Jeff Sessions for jeopardizing the re-elections of Hunter and **Chris Collins in New York** (another original Trump endorser).

“Two long running, Obama era investigations of two very popular Republican Congressman were brought to a well-publicized charge, just ahead of the Mid-Terms, by the Jeff Sessions Justice Department,” Trump tweeted. “Two easy wins now in doubt because there is not enough time. Good job Jeff.”



Said Halpern: “So am I worried about it? Yeah! The president of the United States is tweeting about my case!”

He's happy to report that his fears were unfounded.

"You can also say that I hope the attorney general is finding his moral rudder," he said. "Hopefully this guy can right the ship right before the election, but I'm not holding my breath."



Phillip Halpern turns to acknowledge fellow prosecutors at press conference after Rep. Duncan Hunter's guilty plea in December 2019.

In his career, Halpern said that only once did he feel political influence from Washington. (He volunteered no details but said: "Fortunately, that story has a good ending.")

Halpern notes that with high-profile cases, Washington looks over one's shoulder — "like your mother when you were 13-year-old kid. And like every 13-year-old kid, you don't like it." But he called such oversight appropriate.

In April 2016, when he first started thinking about a Hunter probe (after reading a **Morgan Cook story in the U-T**), he said he consulted with the Public Integrity Section of the Justice Department.

"I know for a fact this went right up to the office of the deputy attorney general at a minimum," he said.

An irony of Halpern's career is that he even became a federal prosecutor.

"I came there through a circuitous route," he said. "I started out in defense. The only reason I'm probably a prosecutor is because there was a hiring freeze in the Manhattan Public Defender's Office when I applied. That's what I wanted to do."

But he eventually realized he could "greater serve the people" by being a fair and just prosecutor.

"And ... I hope the people who I have worked with the last 30 years. ... most of them will say: 'Yeah, Phil's a straight shooter. He tried to be fair,'" he said.

What's next for Halpern?

He'd like to resume competitive bike racing. And eventually travel and see his three grown children (in Spain and the Bahamas).

He said more than one person approached him: “Hey, I’d like to discuss your future,” but Halpern has been “adamant” against joining a law firm. “And I’m not going to change my mind.”

“But if something really meaningful comes up, I might be tempted,” he said. “But right now, especially after this whirlwind, I’d like to take a little break and catch my breath.”

He had some breath left to denounce the path America is on — expressing worries about the DOJ, attacks on the news media and demonization of immigrants.

“We are not guaranteed in the United States to have a democracy for the next 250 years like the first 250 years,” he said. “More and more, across the globe, we see totalitarian regimes spreading where democracies were.”

He said everybody in the United States, “myself included,” thought such autocracy would never infect America.

“These things DON’T happen here,” he said. “We don’t have a dictator who’s going to try to lock up his political opponents. Well, my friend, that period has ended as far as I’m concerned. And that’s what scares the death out of me.”

Updated at 8:59 a.m. Oct. 17, 2020

© 2026 NEWSWELL

Powered by Newspack



Lawrence O'Donnell chats with Phillip Halpern, who a day later said: “One of the best things that have come out of this is the fact that I’ve heard from so many of my colleagues — people I haven’t heard from in years who thanked me for saying what they wanted to say.”